



ARKA HEALTH, INC.

DE-IDENTIFICATION & LIMITED DATA SET POLICY

Standards for de-identification under 45 C.F.R. § 164.514 and for limited data sets and data use agreements

ARKA-PRIV-002 · Version 1.0 · Confidential — Internal

Document No.	ARKA-PRIV-002
Version	1.0
Effective Date	June 10, 2026
Last Reviewed	June 10, 2026
Document Owner	Arri Kanna, Founder & Chief Executive Officer — Privacy & Security Officer
Approved By	Arri Kanna, Founder & Chief Executive Officer
Classification	Confidential — Internal
Review Cycle	Annual, and upon any material change in operations, systems, or law

This document contains confidential and proprietary information of ARKA Health, Inc. (“ARKA”). It is furnished for informational and compliance purposes, may not be reproduced or disclosed to any third party without the prior written consent of ARKA, and must be returned or destroyed upon request. Nothing in this document constitutes legal advice.

1. PURPOSE AND SCOPE

This Policy prescribes the exclusive methods by which ARKA Health, Inc. (“**ARKA**”) may de-identify Protected Health Information and the conditions under which ARKA may create, use, or disclose a limited data set. It applies to all Workforce Members and to all data pipelines, models, analytics, demonstrations, and publications that derive from PHI. De-identification of PHI received in a business associate capacity is permitted **only where the applicable business associate agreement so provides**.

2. DE-IDENTIFICATION STANDARDS

2.1 Safe Harbor method — 45 C.F.R. § 164.514(b)(2)

Information is de-identified under the Safe Harbor method only upon (i) removal of all eighteen (18) categories of identifiers enumerated below with respect to the individual and the individual’s relatives, employers, and household members, and (ii) the absence of actual knowledge that the remaining information could be used alone or in combination with other information to identify the individual.

Identifiers to be removed (1–9)	Identifiers to be removed (10–18)
1. Names	10. Account numbers
2. Geographic subdivisions smaller than a state (incl. ZIP codes, except the initial three digits where the unit contains > 20,000 people)	11. Certificate / license numbers
3. All elements of dates (except year) directly related to an individual; all ages over 89	12. Vehicle identifiers and serial numbers, incl. license plates
4. Telephone numbers	13. Device identifiers and serial numbers
5. Fax numbers	14. Web URLs
6. Email addresses	15. IP addresses
7. Social Security numbers	16. Biometric identifiers, incl. finger and voice prints
8. Medical record numbers	17. Full-face photographs and comparable images
9. Health plan beneficiary numbers	18. Any other unique identifying number, characteristic, or code, except a re-identification code assigned under § 164.514(c)

2.2 Expert Determination method — 45 C.F.R. § 164.514(b)(1)

Alternatively, information may be treated as de-identified where a person with appropriate knowledge of and experience with generally accepted statistical and scientific principles and methods determines that the risk is very small that the information could be used, alone or in combination with other reasonably available information, by an anticipated recipient to identify an individual, and documents the methods and results of the analysis. The Privacy Officer shall retain each expert determination, including the expert’s qualifications, for six (6) years and shall commission a refreshed determination upon any material change to the data set or its disclosure context.

2.3 Re-identification codes

Any code or other means of record re-identification assigned under 45 C.F.R. § 164.514(c) shall not be derived from or related to information about the individual, shall not be disclosed to any recipient of the de-identified data, and shall be protected as PHI under the ARKA-SEC policy series.

3. LIMITED DATA SETS

ARKA may create, use, or disclose a limited data set, as defined at 45 C.F.R. § 164.514(e)(2), solely for research, public health, or health care operations purposes, and solely pursuant to a data use agreement satisfying § 164.514(e)(4) executed **before** any use or disclosure. Each data use agreement shall: identify the permitted uses and disclosures; identify the permitted recipients; and bind the recipient not to use or further disclose the information except as permitted, to use appropriate safeguards, to report unauthorized uses, to bind agents to the same restrictions, and not to identify the information or contact the individuals.

4. PROHIBITION ON RE-IDENTIFICATION

No Workforce Member shall attempt to re-identify, or facilitate the re-identification of, any individual from de-identified information or a limited data set, except as expressly authorized in writing by the Privacy Officer for a lawful purpose (e.g., a data-integrity audit under controlled conditions). Violation of this Section is a Category III sanction event under ARKA-SEC-008.

5. MACHINE LEARNING AND ANALYTICS APPLICATIONS

Model training, evaluation, benchmarking, and product analytics shall use synthetic data or data de-identified under Section 2. The Security Officer shall document, for each training corpus, the provenance of the data and the de-identification method applied, and shall subject outbound model artifacts and aggregate statistics to a disclosure-risk review (small-cell suppression for counts below eleven (11); suppression of free-text fields unless scrubbed and sampled for residual identifiers).

6. DEMONSTRATION AND MARKETING MATERIALS

All patient records, names, images, and clinical scenarios appearing in the ARKA demonstration environment, sales materials, or publications are and shall remain wholly synthetic in accordance with ARKA-DEMO-001. PHI, even if de-identified, shall not be used in public-facing demonstrations without the prior written approval of the Privacy Officer and, where required by the applicable BAA, the Customer.

DOCUMENT CONTROL & REVISION HISTORY

Version	Date	Author / Reviewer	Description of Change
0.9	May 22, 2026	A. Kanna (drafting); external review pending	Initial draft circulated for internal review and counsel comment.
1.0	June 10, 2026	A. Kanna, Privacy & Security Officer	Adopted as effective policy of ARKA Health, Inc. by written approval of the undersigned officer.

ADOPTION AND APPROVAL

The undersigned, being the duly designated Privacy Officer and Security Officer of ARKA Health, Inc., hereby adopts this document as an official policy of the Company, effective as of the Effective Date set forth on the cover page hereof. This document shall be reviewed no less frequently than annually and upon any material change to the Company's operations, information systems, or applicable law, and may be amended only in accordance with ARKA-GOV-001 (Information Security & Compliance Program Charter).

ARKA HEALTH, INC.

By: _____

Name: Arri Kanna

Title: Founder & Chief Executive Officer; Privacy & Security Officer

Date: June 10, 2026